EMETSOFT
Starts Happening

April 1, 2019

Mr. Hikkaduwa Vithanage Supun Nimantha
No 139/17, Asiri Place,
Thalahena,
Malabe.
Tel. +94711288825
Email: hvnsupun@gmail.com

Dear Mr. Vithanage,

EmetSoft (Pvt.) Ltd. is pleased to inform you that we have decided to offer a contract to you to work as Software Engineer for the current projects of the company for a given period starting from April 1, 2019 under the following terms and conditions. Your duties include requirement gathering, system analysis & design constructing (coding), testing and all required technical documentation involving with your duties.

1. Date of commencement of the contract: The contract will be in effective from April 1, 2019

2. Contract Period: Twelve (12) months starting from April 1, 2019 to March 31, 2020.

3. Payment: You will be paid total amount of Rs. 600,000/= for this contract and additional performance incentive of Rs 15,000 per month based on your performance on each month. You will be paid this amount monthly Rs. 50,000/= plus your monthly performance incentives at the end of each month starting from April 30, 2019.

4. Target: You are required to finish all the tasks assigned monthly by your supervisor according to the available working hours per each month.

5. Holidays: You will be entitled to weekly holidays and other holidays in accordance with the working calendar of the company.

6. Hours of Work: You should cover minimum of 8 working hours per day and your normal hours of work are from 8.15 am to 4:45 pm on all weekdays except holidays.

7. Leave: Your leave entitlement is only half day per month.

8. Deductions: The value of the unentitled leaves will be deducted from next possible monthly payments.

9. Misconduct: Misconduct of any form or breach of the standing orders of the Company will render a person liable to dismissal without notice or payment in lieu. The Company may also suspend a person without pay pending any investigation into misconduct. It is necessary that you should acquaint yourself with the standing orders of the Company as amended from time to time and these standing orders shall form part and parcel of your terms of contract.

10. Notice: This contract may be terminated by either party on giving two calendar months' notice or by the payment of the value of two calendar months' payments in accordance with the clause 3 above in lieu, subject to the right of the employer under clause 9 above.

11. General: You shall at all times be of such health as would be necessary to discharge the obligations of your contract. The Management may on medical opinion terminate your contract if it is found that you are physically or mentally unfit to continue in work. While it is a precondition of contract that you obtain a medical report regarding your fitness for work, you should also submit yourself to a medical examination from time to time when so required by the Management.

11.1 During the period of your contract you shall be punctual in your attendance, diligently and faithfully perform and discharge your said duties and functions and shall devote your whole time and attention to your duties and functions during hours of work.

11.2 You shall strictly adhere to the rules and regulations for the time being in force or followed at the place of business in which you work and faithfully carry out and obey such instructions as may be given to you from time to time by the Company.

11.3 You shall use your best endeavors in protecting and promoting the interest of the Company.

11.4 You shall not directly or indirectly concern, engage or interest yourself in any business, trade or other gainful occupation other than the business of the Company.

11.5 You shall undertake not to divulge trade secrets after finishing the contract at this company.

11.6 You shall not accept any gift or gratification for the performance of any function in this Company whether it is within your preview to perform the function or otherwise.

11.7 You shall do everything in your control both whilst on duty as well as outside, to safeguard the image of the Company and its business interest.

11.8 You shall keep secret, any information that you have obtained in the performance of your duties or by, your association with customers or clients of the Company.

11.9 You shall undertake not to divulge trade secrets after finishing the contract at this Company, you shall not be employed in the establishment of a competitor, or personally compete in any form with the Company for a period of two years.

11.10 During the period of your contract you shall not enter into any bond or become surety or bail for any person or do or offer to be done anything where by you may be adversely affected, endangered or seized or taking in execution of a writ from any court.

12. Intellectual Property. All Intellectual Property, as defined below, and all copyrights and other rights, titles and interests, both legal and equitable, in and to the Intellectual Property belong solely to the company. You hereby assigns, transfers, grants and delivers, solely irrevocably and exclusively throughout the world to the company, all copyrights, patents, trade secrets, trade-marks and other rights, titles and interests whatsoever, both legal and equitable, that you may own in such Intellectual Property. You hereby waive, and represents and warrants to the company that its employees or personnel providing the Services have waived, in whole all moral rights which you may have in the Intellectual Property, including the right to restrain use or reproduction of the Intellectual Property in any context and in connection with any product, service, cause or institution. You shall execute such grants, assignments and waivers of all such rights as company may reasonably request from time to time.

"Intellectual Property" shall include, but is not limited to, every concept, development, design, process, computer program, invention, procedure, system, writing, drawing, plan, know-how, trade secret, customer list, data, market research, product or service details, economic information, or any other intangible asset of value, which are in any way related to the business of the company and which are created, developed, invented or written by you for the purpose of the provision of the Services under this contact.

If you are agreeable to the above terms, please sign and return the duplicate hereof.

Yours faithfully,
EmetSoft (Pvt.) Ltd.

Director ..... Date: 01/04/2019

I accept contract on the terms and conditions set out on this letter of offering contract, the original of which has been given to me.

Signature..... Date: 01/04/2019